

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE NETHERLANDS

Complete Community Opposition How-To

*This guide uses the Dutch terms and bodies you'll actually run into — the **zienswijze**, the Council of State (Raad van State), the m.e.r./EIA, the nitrogen and Natura 2000 rules, the Omgevingswet — and explains each in plain words the first time. The Netherlands is an EU member, and EU law is the foundation of its sharpest levers.*

INTRODUCTION & FRAMEWORK

For sixty years, the **Groningen gas field** — the largest in Europe — was pumped for the wealth of the whole country. And for decades, the people who lived above it paid the price: extraction set off **earthquakes that cracked and condemned thousands of homes**, made residents sick, and, as one minister put it, "destroy communities." The people of Groningen — through residents' associations, relentless documentation of the damage, a parliamentary reckoning that found the state had paid "barely any attention to the long-term risks," and years of refusing to be ignored — forced a reversal almost unimaginable for a gas-exporting nation. Production was wound down and **halted on 1 October 2023**, and in **2024 the Dutch Senate passed a law to close the field permanently** — never to reopen — even as an energy crisis raged and Shell and ExxonMobil went to arbitration for compensation. A community living above Europe's biggest gas field made the state shut it down. As the minister said: "We close because gas extraction is unsafe."

The people of Groningen, who forced the state to close Europe's biggest gas field, drew on an unusually clear toolkit — and one extraordinary legal lever. Anyone can file a **zienswijze** (a formal view or objection) on a draft decision, and appeal to the **Council of State (Raad van State)**, whose appeals succeed far more often than in most countries; protest, petition, and litigation are lawful. Behind that sits **EU law** — the **Aarhus Convention** (participation, information, access to justice), the **EIA Directive**, and, decisively, the **Habitats and Birds Directives**, which are the foundation of the **nitrogen ground**: in 2019 the Council of State struck down the government's nitrogen scheme, **halting thousands of projects at once** and changing national policy. That nitrogen/Natura 2000 gate is the sharpest lever in this guide. But these tools have real limits, and this guide states them plainly. The Netherlands is built to deliver development, with an acute housing and infrastructure imperative; some project types have curtailed appeal rights; and the process favours those who know how to use it. So most fights are won not by a dramatic national reversal but by a **permit annulled or sent back on a defect, conditions tightened, a project stalled for years, a plan withheld, or a developer who gives up** because the Dutch process is slow, transparent, and genuinely uncertain for them. Each is a real result.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A Dutch project needs its permits under the **Omgevingswet**; it must survive **appeal to the Council of State**; where it emits **nitrogen** near a **Natura 2000** site, or lacks a proper **EIA**, it runs into hard EU-law grounds; and a **municipality, province, or water authority** can withhold or change a plan. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and in the Netherlands, the nitrogen link is often

the one that breaks.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project emits nitrogen near a Natura 2000 site, that's your sharpest lever** — the nitrogen ground has halted thousands of projects, and it's often unfixable.
- **If the EIA is defective or the participation was a token, appeal to the Council of State** — which succeeds unusually often.
- **If a plan is needed, a municipality or province can withhold or change it** — real political leverage.
- **But this is a development-oriented country** — so most wins are a permit annulled or sent back, a nitrogen stall, conditions, or a developer giving up, not a dramatic veto.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the *zienswijze*, the appeal, the nitrogen and EIA grounds, access to information — as **rights, not favours**, anchored in Dutch and EU law; and **run every front at once**: the documents, the participation, the Council of State, the plan-makers, the press. That combination is what the Dutch system responds to.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Since 2024 the **Omgevingswet (Environment and Planning Act)** is the single framework for the physical environment. Power is shared between the **central government (Rijk)**, the **provinces**, the **municipalities**, and the **water authorities** — within a framework set decisively by **EU law** (the Habitats and Birds Directives, the EIA Directive, the Aarhus Convention). The permits and plans issue at these levels; the independent **Commissie voor de milieueffectrapportage (Commissie m.e.r.)** reviews EIAs; and the **Council of State (Raad van State)** hears the appeals. Know which body decides your project, and aim there.

How a Project Moves — and Where You Jump In

The draft decision and the *zienswijze*. A permit or plan is put out in draft with a **participation** phase. *Your opening* — and it arms every later step: file a ***zienswijze***, a formal objection, on the draft. This is your entry, and generally your ticket to appeal.

The EIA (m.e.r.). Major projects need an environmental impact assessment, reviewed by the Commissie m.e.r. *Your opening*: a required-but-missing or defective EIA is a strong ground.

The nitrogen assessment. A project emitting nitrogen near a Natura 2000 site needs an **appropriate assessment**. *Your opening* — *the sharpest*: an inadequate nitrogen assessment can sink the project, often unfixably.

The decision and appeal. The authority decides. *Your opening*: **appeal to the Council of State**, which succeeds unusually often.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the permit not final or under appeal, the nitrogen problem not solved, financing not closed: whatever's missing is the soft spot (the nitrogen gate is often the missing piece). **Who's paying** — banks and investors, sensitive to a project stuck in legal uncertainty.

Who's Supposed to Be Watching

Each is an ally or an arena. The **municipality, province, water authority, and Rijk** issue the permits and plans and can be pressed. The **Commissie m.e.r.** reviews the EIA. The **Council of State** hears appeals — a genuine, not token, backstop. The **National Ombudsman** takes maladministration complaints. And the Netherlands' **strong environmental organisations, residents' associations, and a free press** are the forces that reach furthest — the combination that shut Groningen.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the nitrogen/Natura 2000 gate is engaged, whether the EIA is defective, and whether a plan can be withheld.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Zienswijze on the draft	15–35%	during decision	low	On record; conditions or a redo; your ticket to appeal
Appeal to the Council of State	30–55%	1–2 yr	low–mod	Permit annulled or sent back
Nitrogen / Natura 2000 ground	40–65%	1–2 yr	low–mod	Project halted, often unfixably
EIA (m.e.r.) defect	30–55%	1–2 yr	low–mod	Permit annulled; assessment redone
Withholding a municipal/provincial plan	20–45%	months–yr	low	Project stalled at plan stage
Making the process slow and uncertain	25–50%	months–yr	low	Developer gives up
Everything together (nitrogen/EIA defect, plan leverage)	45–65%	1–3 yr	low–mod	Annulled, stalled, conditioned, abandoned
Everything together (housing/infra priority, clean process)	20–45%	1–3 yr	low–mod	Delayed, conditioned, redesigned

The lever that moves the needle most is the **nitrogen/Natura 2000 ground**, followed by the **EIA defect** and the **Council of State appeal** (which succeeds far more often here than most places), plus **plan leverage**. Groningen shows the ceiling (Europe's biggest gas field shut down). Most wins are incremental — an annulled permit, a nitrogen stall, conditions, a developer giving up — and each is real. Plan for a marathon.

On cost: the zienswijze, participation, and access to environmental information (a Woo request) are cheap and are rights, not favours; and the Aarhus "not prohibitively expensive" principle helps shield an environmental challenger — so the Council of State is

genuinely accessible.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permit, this nitrogen defect, this Natura 2000 line — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch — especially any Natura 2000 site?** Get the footprint and lay it over **Natura 2000 sites** (and the nitrogen-sensitive habitats within reach), water, protected nature, communities. **Proximity to a nitrogen-sensitive Natura 2000 site is your sharpest lever**, so establish this first.
- 3. What stage is it at, and what's the next deadline?** Is a draft decision out for a zienswijze? Has the permit issued (opening the Council of State appeal)? These openings are strictly time-bound — miss the zienswijze and you may lose your appeal.
- 4. What does it still need that it lacks?** A permit not final, a nitrogen solution not found, a plan not adopted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, residents' associations, national environmental organisations, the municipality. Groningen united residents and the nation.

What this looks like in real life. A community learns a project is planned that will emit nitrogen near a Natura 2000 heath, with a thin EIA. The five questions yield: a company behind it; a site near a nitrogen-sensitive Natura 2000 area (the sharp lever); a draft decision open for a zienswijze; a project still needing its nitrogen solution and permit; and a coalition of residents and national groups. That's the Dutch pattern — file the zienswijze, attack the nitrogen assessment, and ready the Council of State appeal.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Groningen was won partly on residents' meticulous documentation of the damage. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the permit application and draft decision, the EIA and the Commissie m.e.r. advice, the **nitrogen/appropriate assessment**, the plan. A **Woo request** (access to government information) forces out what isn't public. Then read them hard for flaws — an understated impact, a defective or missing EIA, and above all a **weak nitrogen assessment** near a Natura 2000 site.

Layer two: the ground truth. Dated, located photographs and video of the site, the nature, the harm (the cracked homes, at Groningen) — baseline images most of all — and the testimony of affected residents.

Layer three: the map of Natura 2000 and nitrogen. Lay the project over the Natura 2000 sites and nitrogen-sensitive habitats within reach, so the sharpest lever is visible. Walking into the Council of State with the permit, the nitrogen assessment, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The permit application and draft decision, the EIA and Commissie m.e.r. advice, the nitrogen/appropriate assessment, the plan** — from the deciding authority; force out the rest with a Woo request (8A).
- **Municipal and provincial plans** — from the municipality and province.
- **Ownership and financing** — company records.
- **The Natura 2000 and nitrogen map** — the protected sites and nitrogen-sensitive habitats within reach, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Groningen's residents' associations, holding on for decades, are the Dutch example. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the nature and the harm, a few tireless organisers, and respected local figures.

Form an association and reach the national organisations. A named residents' or environmental association (a *vereniging* or *stichting*), linked to the national environmental groups that run Council of State cases, brings standing, expertise, and reach. Hold meetings where people see the evidence and the Natura 2000 map.

Work the plan-makers. A municipality, province, or water authority can withhold or change a plan. Cultivate them — local politics can stall a project at the plan stage.

Bring in the lawyers and experts — early. Public-interest lawyers who run appeals, and ecologists who can dismantle a weak nitrogen or EIA assessment. In an open democracy, build this in daylight.

Build to last. Dutch fights are marathons — Groningen took decades. Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and bank each delay, condition, and annulment as a win to keep morale.

STEP 4: LEGAL CHALLENGES, NITROGEN & THE COUNCIL OF STATE

Law is the Netherlands' sharpest lever, because the Council of State genuinely annuls decisions and EU law gives grounds no domestic streamlining can remove.

File the Zienswijze First

Everything downstream depends on the **zienswijze** — a formal objection on the draft decision. It's your entry, your record, and generally your **ticket to appeal**: miss it, and you may forfeit your right to go to the Council of State. File it, substantively, on time.

The Nitrogen / Natura 2000 Ground — the Sharpest Lever

The single sharpest Dutch lever is **nitrogen**. A project emitting nitrogen (from traffic, livestock, construction, industry) that deposits on a nitrogen-sensitive **Natura 2000** habitat needs an **appropriate assessment** under the Habitats Directive proving no significant harm — and in 2019 the Council of State struck down the

government's nitrogen scheme, **halting thousands of projects**. A weak nitrogen assessment is often **unfixable**, stalling a project for years. Establish the Natura 2000 proximity and attack the nitrogen assessment.

The EIA Defect and the Appeal to the Council of State

A required-but-missing or **defective EIA (m.e.r.)** — poorly reviewed by the Commissie m.e.r. — is a further strong ground. Bring it, and the nitrogen ground, on **appeal to the Council of State (Raad van State)**, whose appeals succeed **far more often than in most countries** — a genuine backstop, not a token one. All these rest on **EU law** (Aarhus, EIA, Habitats/Birds) the state cannot streamline away.

The Honest Limits

Straight talk: the nitrogen ground and the Council of State are powerful, but this is a development-oriented country, litigation takes time, and some appeal rights are curtailed. So use the strong tools — the *zienswijze*, the nitrogen and EIA grounds, the Council of State, the plan leverage — but pair them with the plan-makers and the press, plan for a marathon, and count an annulled or remanded permit, a nitrogen stall, conditions, a withheld plan, and a developer giving up as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Nitrogen becomes the killer point. Not "the project is bad" but *"its nitrogen deposition on this Natura 2000 habitat is not adequately assessed — under the Habitats Directive, it cannot proceed."*

A document becomes an EIA defect. *"A proper EIA was required and not done / was fatally defective — grounds to annul."*

A right becomes a demand. *"Our zienswijze and access rights are anchored in EU law — a token process breaches binding obligations."*

The harm becomes a public story. *"The nature, the homes, the community our families depend on — for a project stuck on an unfixable nitrogen problem."*

Match it to the venue: the objections to the deciding authority via the *zienswijze*; the nitrogen and EIA defects to the Council of State; the plan to the municipality or province; the human story to the press.

STEP 5: MEDIA STRATEGY

In the Netherlands, publicity supports the legal fight and the plan politics — Groningen became a national reckoning. A free press, residents' associations, and national organisations make the media front useful.

Lead with people and place, not procedure. Not "the appropriate assessment was inadequate" but "the nature, the homes, the community our families depend on — for a project stuck on an unfixable nitrogen problem." Use your strongest material: dated photographs, the Natura 2000 map, the human harm, and any Council of State win banked.

Work several audiences at once. Local and national press build the plan politics; national organisations amplify; and the transparency of the Dutch process means a well-documented case travels. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And frame your rights as rights, not complaints.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access-to-information request (Woo).

Subject: Woo request — [project].

"Under the Open Government Act (Woo), we, residents of [place], request the permit application and draft decision, the EIA and Commissie m.e.r. advice, the nitrogen/appropriate assessment, and the plan for [project] at [location]. [Contact.]"

8B — Zienswijze on the draft decision.

Subject: Zienswijze — [project].

"We, residents of [place], submit this zienswijze on the draft decision for [project]: [the nitrogen assessment inadequately addresses deposition on this Natura 2000 habitat; the EIA is defective; alternatives were ignored]. We ask that the permit be refused. [Attach evidence.]"

8C — To a national environmental organisation / lawyer.

Subject: Request for support and a Council of State appeal — [project].

"Our community faces [project], which [deposits nitrogen on a Natura 2000 site / lacks a proper EIA]. We've gathered [the assessment, the permit, photographs] and believe there are strong nitrogen and EIA grounds. We ask for your support and, if warranted, an appeal, as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (Council of State appeal).

Subject: Appeal to the Council of State — [project].

"We instruct you to appeal the decision on [project] to the Council of State, on the grounds that [the nitrogen/appropriate assessment is inadequate under the Habitats Directive / the EIA was defective]. [Attach the decision, our zienswijze and our evidence.]"

8E — To the municipality / province (plan).

Subject: Request to withhold or change the plan for [project].

"We, residents of [place], ask you not to adopt (or to change) the plan enabling [project], which threatens [our nature / homes / community] and faces a nitrogen problem. [Attach evidence.]"

8F — To a financier.

Subject: Legal uncertainty and risk in [project].

"We understand your institution may be financing [project] at [location], which faces a nitrogen/Natura 2000 problem and a Council of State appeal that could stall it for years. We ask you to weigh this. [Contact and

evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [nature / homes] from [project].

"For generations the people of [place] have lived beside [the nature / in the homes] at [location]. Now [project] threatens it — and is stuck on an unfixable nitrogen problem. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our nature / homes]. The people of Groningen made the state shut down Europe's biggest gas field. With the zienswijze, the nitrogen ground, the Council of State, and our plan-makers behind us, we have a real chance. Please join us — file your zienswijze. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and whether it emits nitrogen near a Natura 2000 site.** That's your sharpest, often-unfixable lever.
2. **File your zienswijze on the draft decision on time (8B) — it's your ticket to appeal.**
3. **Request the documents with a Woo request (8A), and attack the nitrogen and EIA assessments.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Appeal to the Council of State (8D) — it succeeds unusually often — and press your plan-makers (8E).**
6. **Team up with a national organisation and go public (8C/8H).** The transparent Dutch process rewards a well-documented case.

Even lean, those six secure your appeal rights, hit the nitrogen gate, and reach the Council of State.

WHEN THE SYSTEM IS TILTED

The Netherlands' tools are real, but the field leans toward development, and you must plan for it.

When housing or infrastructure is the priority. Many projects that reach a decision are approved. Don't fold: the nitrogen and EIA grounds and the Council of State are genuine backstops, and plan leverage is real — aim for annulment, a nitrogen stall, conditions, and a developer giving up as wins.

When appeal rights are curtailed. Some project types now have narrowed appeal rights. Establish early whether you can appeal, file your zienswijze regardless, and lean on the plan stage and the political route.

When participation is a token. A token process breaches binding EU obligations (Aarhus). Document it — and treat your rights as rights.

What still works, and it's a lot. The nitrogen/Natura 2000 ground that has halted thousands of projects; a Council of State that annuls decisions far more often than most courts; the EIA defect; and municipalities and provinces that can withhold a plan.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

The Netherlands is a well-governed democracy, but the closeness of developers and authorities can bend a decision, and where it does, you expose it.

How to spot it. Permits against the evidence; an EIA or nitrogen assessment written to a foregone conclusion; a token participation; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Court of Audit (Algemene Rekenkamer)** examines public money. The **National Ombudsman** takes maladministration complaints. Prosecutors handle graft. The **Council of State** can annul a tainted decision, and **EU law** backs your participation and information rights. And the Netherlands' **free press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Ombudsman, the Court of Audit, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the nitrogen/Natura 2000 lever aims it; organising builds the muscle; the zienswijze and the Council of State appeal press the case; the plan politics and the media raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any Natura 2000 proximity and nitrogen issue; file your zienswijze on time; make a Woo request; photograph the baseline; team up with a national organisation and a lawyer; work your plan-makers.

In the thick of it (months–years): appeal to the Council of State on the nitrogen and EIA grounds; press the municipality or province on the plan; build the association and open the media front.

The long haul (years): carry the appeal through the Council of State; keep the plan politics and the movement alive; hold the line for an annulled or remanded permit, a nitrogen stall, conditions, a withheld plan, a developer giving up, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in the Netherlands can be done — the people of Groningen made the state permanently shut down Europe's biggest gas field. Hold both truths. The Dutch tools are real and, in one respect, unusually strong: the nitrogen/Natura 2000 ground that has halted thousands of projects at once; a Council of State whose appeals succeed far more often than in most countries; the EIA defect; municipalities and provinces that can withhold a plan; and EU law that anchors your rights beyond any domestic streamlining. And the constraints are real: a development-oriented country with a housing imperative, some curtailed appeal rights, and slow litigation — so most wins are incremental.

Here's the discipline that wins. Establish whether the project emits nitrogen near a Natura 2000 site — your sharpest, often-unfixable lever — and find the EIA defect, and pry loose the record with a Woo request. File your zienswijze on time; it's your ticket to appeal. Appeal to the Council of State on the nitrogen and EIA grounds, and press your municipality or province on the plan. Team up with a national organisation, carry the story to the public, and treat your rights as rights. Count an annulled permit, a nitrogen stall, conditions, a withheld plan, and a developer giving up as wins alongside an outright stop. That's what Groningen did — the residents, the reckoning, and the refusal to be ignored together. So can you.